

Court No. - 1

Case :- WRIT - C No. - 24647 of 2019

Petitioner :- Manoj Kumar Sahu

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Matter is adjourned.

Learned counsel appearing on behalf of the Electricity Department may seek instructions in the matter.

Put up the matter on Wednesday, i.e., on **07.08.2019.**

Order Date :- 5.8.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

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Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Ranjeet Saxena, learned counsel for the petitioner, Sri Sujail Ahmad Ansari appearing on behalf of respondent Nos.2 and 3, learned Standing Counsel for the State and perused the record.

By means of this petition under Article 226 of the Constitution of India has prayed for following relief:

"(i) issue a writ, order or direction in the nature of mandamus directing the Electricity Engineer, Electricity Distribution Division Ist, U.P. Power Corporation Ltd. to restore the Electricity Connection No.ACID068512420 LMV-1, 3 KW of the petitioner."

After hearing the petitioner initially we had asked learned counsel appearing for Electricity Department to have instructions in the matter. Today the instructions have been placed before this Court, which are taken on record.

From the instructions it is clearly revealed that the petitioner had already been issued provisional assessment order on 02.05.2019 and a direction was issued to him to file objection, if he had any.

From perusal of the said document it is also clear that it had been duly served upon the petitioner, who has received it personally.

In view of the above, we are of the opinion that the petitioner has a remedy to file objection against the provisional assessment and in the event if the

objection is filed, the same shall be heard under Section 8.1 Clause (b) of the U.P. Electricity Supply Code, 2005. The provision takes full care of such circumstances where provisional assessments are made and the objections are filed. We have no reason to doubt whether the Department will consider the objection of the petitioner if he files.

Accordingly, we direct the petitioner to file his objection within a period of three weeks from today against the assessment order dated 02.05.2019, which is handed over to the counsel for the petitioner in the Court itself by the learned counsel appearing for respondents. It is further directed that in the event as directed herinabove, the petitioner files his objection within period as prescribed for under this order, his objection shall be considered and a final order be passed within further period of four weeks.

It is further clarified that while passing the order, the authority concerned shall examine all aspects of the matter and shall pass reasoned and speaking order and thereafter the final assessment bill also be prepared. Since the petitioner's electricity has been disconnected on account of proceedings drawn against him under Section 135 of the Electricity Act, 2003 and the provisional assessment order has been issued in which the provisional bill assessed is of Rs.1,01,028/-, it is hereby provided that in case if the petitioner deposits 50% of the said amount within ten days from today, his electricity connection shall be restored. However, restoration of the electricity connection and the provisional assessment shall abide by the final order to be passed by the authority, as directed herein above.

Order Date :- 7.8.2019
Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)